

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: William Rasenberger	Team: Squad #07	CCRB Case #: 202008000	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☐ Injury
Incident Date(s) Wednesday, 12/02/2020 10:47 PM	Location of Incident: 331 East 161 Street	18 Mo. SOL 6/2/2022	Precinct:
Date/Time CV Reported Mon, 12/07/2020 8:12 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Mon, 12/07/2020 8:12 PM

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Nestor Amarantepolanco	16064	964221	PSA 7
2. POM James Weck	10752	963803	PSA 7
3. POM John Joyce	05953	961846	PSA 7
4. POM Michael Visintin	14001	953536	PSA 7
5. POM Jose Tejada	06150	960018	PSA 7
6. POM Jayther Liriano	27634	964614	PSA 7

Officer(s)	Allegation	Investigator Recommendation
A . POM James Weck	Abuse: Police Officer James Weck stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	A . Unsubstantiated
B . POM Jayther Liriano	Abuse: Police Officer Jayther Liriano stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	B . Unsubstantiated
C . POM Michael Visintin	Abuse: Police Officer Michael Visintin stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	C . Unsubstantiated
D . POM John Joyce	Abuse: Police Officer John Joyce stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	D . Unsubstantiated
E . POM Jose Tejada	Abuse: Police Officer Jose Tejada stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	E . Unsubstantiated
F . POM Nestor Amarantepolanco	Abuse: Police Officer Nestor Amarantepolanco stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	F . Unsubstantiated
G . POM Nestor Amarantepolanco	Abuse: Police Officer Nestor Amarantepolanco frisked § 87(2)(b)	G . Unsubstantiated
H . POM James Weck	Abuse: Police Officer James Weck frisked § 87(2)(b)	H . Unsubstantiated
I . POM James Weck	Abuse: Police Officer James Weck searched § 87(2)(b)	I . Unsubstantiated
J . POM James Weck	Abuse: Police Officer James Weck searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	J . Unsubstantiated
K . POM Jayther Liriano	Abuse: Police Officer Jayther Liriano searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	K . Unsubstantiated
L . POM Jose Tejada	Abuse: Police Officer Jose Tejada searched the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.	L . Unsubstantiated
M . POM Jayther Liriano	Force: Police Officer Jayther Liriano used physical force against § 87(2)(b)	M . Exonerated
N . POM Michael Visintin	Force: Police Officer Michael Visintin used physical force against § 87(2)(b)	N . Exonerated

Officer(s)	Allegation	Investigator Recommendation
O . POM James Weck	Abuse: Police Officer James Weck interfered with § 87(2)(b) use of a recording device.	O . Substantiated
P . POM Michael Visintin	Abuse: Police Officer Michael Visintin interfered with § 87(2)(b) use of a recording device.	P . Substantiated
Q . POM James Weck	Abuse: Police Officer James Weck failed to provide § 87(2)(b) with a business card.	Q . Substantiated
R . POM Jose Tejada	Abuse: Police Officer Jose Tejada failed to provide § 87(2)(b) with a business card.	R . Substantiated
S . POM Nestor Amarantepolanco	Abuse: Police Officer Nestor Amarantepolanco failed to provide § 87(2)(b) with a business card.	S . Substantiated
T . POM Michael Visintin	Abuse: Police Officer Michael Visintin failed to provide § 87(2)(b) with a business card.	T . Substantiated
U . POM Jayther Liriano	Abuse: Police Officer Jayther Liriano failed to provide § 87(2)(b) with a business card.	U . Substantiated
V . POM James Weck	Abuse: Police Officer James Weck failed to provide § 87(2)(b) with a business card.	V . Substantiated
W . POM Jose Tejada	Abuse: Police Officer Jose Tejada failed to provide § 87(2)(b) with a business card.	W . Substantiated
X . POM Nestor Amarantepolanco	Abuse: Police Officer Nestor Amarantepolanco failed to provide § 87(2)(b) with a business card.	X . Substantiated
Y . POM Michael Visintin	Abuse: Police Officer Michael Visintin failed to provide § 87(2)(b) with a business card.	Y . Substantiated
Z . POM Jayther Liriano	Abuse: Police Officer Jayther Liriano failed to provide § 87(2)(b) with a business card.	Z . Substantiated

Case Summary

On December 7th, 2020, the CCRB received a complaint from § 87(2)(b) and on December 16th, 2020, a complaint from § 87(2)(b) each regarding the following incident [BR 1].

At about 10:45 p.m. on December 2nd, 2020, Officers James Weck, Michael Visintin, John Joyce, Jose Tejada, Nestor Amarantepolanco, and Jayther Liriano, all assigned to PSA 7 public safety, stopped § 87(2)(b) vehicle, wherein § 87(2)(b) was the driver and § 87(2)(b) the passenger, near the intersection of 161st and Park Avenue in the Bronx [**Allegations A-F: Abuse of Authority – Vehicle Stop, unsubstantiated**]. PO Amarantepolanco removed § 87(2)(b) from the vehicle, and frisked him [**Allegation G: Abuse of Authority – Frisk, unsubstantiated**]. Police Officer James Weck removed § 87(2)(b) from the vehicle, and frisked and searched him [**Allegation H: Abuse of Authority – Frisk, unsubstantiated, Allegation I: Abuse of Authority – Search, unsubstantiated**]. Officers Weck, Tejada, and Liriano then searched § 87(2)(b) vehicle [**Allegations J – L: Abuse of Authority – Vehicle Search, unsubstantiated**], while § 87(2)(b) and § 87(2)(b) stood by the rear of § 87(2)(b) vehicle. When § 87(2)(b) failed to comply with officers' orders to reenter § 87(2)(b) vehicle, Officers Visintin and PO Liriano pushed § 87(2)(b) back inside of the vehicle [**Allegations M and N: Force – Physical Force, exonerated**]. From inside of the vehicle, § 87(2)(b) began to record the officers. PO Weck and PO Visintin both interfered with § 87(2)(b) ability to record [**Allegations O and P: Abuse of Authority – Interference with Use of Recording Device, substantiated**]. None of the officers offered a Right to Know Act card to § 87(2)(b) or § 87(2)(b) [**Allegations Q – Z: Abuse of Authority – Failure to Offer a Right to Know Act business card, substantiated**]. (Note that failure to provide RKA card is not pleaded against PO Joyce, as he did not interact with § 87(2)(b) or § 87(2)(b) and did not participate in the vehicle search.) No summonses were issued to § 87(2)(b) or § 87(2)(b).

The CCRB is in possession of two cellphone videos recorded by § 87(2)(b) [BR 2 and 3] and six body-worn camera videos [BR 4].

Findings and Recommendations

Allegation A: Abuse of Authority – Police Officer James Weck stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation B: Abuse of Authority – Police Officer Jayther Liriano stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation C: Abuse of Authority – Police Officer Michael Visintin stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation D: Abuse of Authority: Police Officer John Joyce stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants

Allegation E: Abuse of Authority: Police Officer Jose Tejada stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants

Allegation F: Abuse of Authority: Police Officer Nestor Amarantepolanco stopped the vehicle in which § 87(2)(b) and § 87(2)(b) were occupants.

Allegation G: Abuse of Authority – Police Officer Nestor Amarantepolanco frisked § 87(2)(b)

Allegation H: Abuse of Authority – Police Officer James Weck frisked § 87(2)(b)

Allegation I: Abuse of Authority – Police Officer James Weck searched § 87(2)(b)

Allegation J: Abuse of Authority – Police Officer James Weck searched § 87(2)(b) vehicle.

Allegation K: Abuse of Authority – Police Officer Jayther Liriano searched § 87(2)(b) vehicle.

Allegation L: Abuse of Authority – Police Officer Jose Tejada searched § 87(2)(b) vehicle.

At about 10:45 p.m. on December 2nd, 2020, Officers Weck, Joyce, Liriano, Tejada, Visintin, and Amarantepolanco stopped § 87(2)(b) vehicle near the intersection of 161st and Park Avenue in the Bronx. § 87(2)(b) and § 87(2)(b) both testified during their CCRB interviews [BR 5 and 6] that they had travelled through a yellow light immediately before the officers stopped them. All of the officers interviewed for this case stated that § 87(2)(b) had travelled through a red light, and that this was their only reason for stopping § 87(2)(b) vehicle. There is no video evidence to settle the matter. § 87(2)(b) and § 87(2)(b) each denied that there was anything illegal, including marijuana, on their persons or inside of § 87(2)(b) vehicle. There was no odor of marijuana in the vehicle, according to both § 87(2)(b) and § 87(2)(b). However, all of the officers testified that they detected an odor of marijuana emanating from § 87(2)(b) vehicle.

At 01:00 in PO Amarantepolanco's BWC video [BR 7], PO Amarantepolanco removes § 87(2)(b) from his vehicle and frisks him. PO Amarantepolanco stated during his CCRB interview [BR 8] that he smelled the odor of both burnt and unburnt marijuana while standing outside of § 87(2)(b) vehicle and removed § 87(2)(b) so that the vehicle could be searched. He then frisked § 87(2)(b) for his safety. Simultaneously, PO Weck interacted with § 87(2)(b). At 1:30 in PO Weck's BWC video [BR 9], he is seen removing § 87(2)(b) from the passenger side. At 01:51 in PO Liriano's BWC video [BR 10], PO Weck is seen entering § 87(2)(b) jacket pocket with his left hand. During his CCRB interview [BR 11], PO Weck stated that he was frisking § 87(2)(b) waist, and accidentally slid his hand into § 87(2)(b) pocket. At 1:54, PO Weck is seen entering another of § 87(2)(b) jacket pockets. His hand remains in this pocket for about four seconds. PO Weck's BWC footage shows that he thoroughly frisked § 87(2)(b) after searching his jacket pockets.

After § 87(2)(b) and § 87(2)(b) were frisked, PO Weck, PO Liriano, and PO Tejada searched § 87(2)(b) vehicle. PO Weck and PO Tejada each testified that he found marijuana during the search. PO Tejada stated during his CCRB interview [BR 12] that he found a small amount of marijuana on the floor in the front of the vehicle. He could not say whether he found the marijuana on the driver's or passenger's side floor, or whether the marijuana was in a bag (or other container) or out in the open. PO Tejada's BWC video [BR 13] shows him searching the driver's side interior between 02:31 and 03:25. At 03:38, after PO Tejada has concluded his search, he is heard stating to PO Liriano "he's got weed on the floor; that's it." PO Tejada was presented with his own BWC video of the search. He was not able to identify, within the footage, the marijuana he found. He noted that there was some residue on the driver's side floor at 02:38 and conjectured that this could have been marijuana. At 02:33 and 02:40, PO Tejada's BWC captures objects on the driver's side floor whose appearance may be consistent with that of marijuana nuggets. Even if these objects were marijuana nuggets, though, it is not clear that PO Tejada or any other officer would have detected their odor. The objects are very small, and the windows of § 87(2)(b) vehicle were rolled down throughout the encounter, providing ventilation. PO Weck testified that he found marijuana "crumbs" in the rear of § 87(2)(b) vehicle. PO Weck is seen searching the rear passenger compartment between 03:05 and 03:30 in his body-worn camera footage. No marijuana is seen in the footage. PO Liriano and PO Tejada searched the trunk of § 87(2)(b) vehicle. This is seen between 04:28 and 04:48 in PO Tejada's BWC footage.

Although, as noted above, all officers testified that they smelled the odor of marijuana, multiple officers are heard in body-worn camera making statements to the effect that they are searching the vehicle only because § 87(2)(b) committed a traffic infraction. At about 02:05 in PO Visintin's BWC video [BR 14], as PO Weck is frisking § 87(2)(b) asks PO Liriano "you're doing all of this because we ran a light?" PO Liriano replies "yes." At 03:30 in the same footage, § 87(2)(b) asks PO Visintin "you're searching the whole car for a red light?" PO Visintin replies "it's discretion." At 03:38, § 87(2)(b) states "a red light is a traffic violation, so you give out a ticket. You don't search people's cars and search them. That's against the law." PO Visintin replies "it's really not." Finally, between 04:50 and 05:20 in PO Tejada's footage, PO Tejada is heard telling § 87(2)(b) "I pulled you over for the red light" and that § 87(2)(b) is the reason

everything else happened.” When § 87(2)(b) asks for clarification as to the meaning of “everything else,” an officer is heard in the background stating “pulling you out of the car.” PO Tejada says “yeah.”

In *People v. Chestnut*, the court held that the odor of marijuana emanating from a vehicle supplies officers with probable cause to search the vehicle and its occupants. *People v. Chestnut* 43 A.D.2d 260 [BR 15]. (Note that this incident occurred before the legalization of marijuana in New York, and the attendant NYPD policy prohibiting searches based on the odor of marijuana alone).

§ 87(2)(b) and § 87(2)(b) both testified that § 87(2)(b) travelled through a yellow light. All of the officers testified that § 87(2)(b) and § 87(2)(b) travelled through a red light. § 87(2)(g)

Therefore, it is recommended that **allegations A – F be closed as unsubstantiated.**

§ 87(2)(g)

§ 87(2)(b) and § 87(2)(b) both testified that there was no marijuana in § 87(2)(b) vehicle, and no odor of marijuana emanating from the vehicle. All of the officers testified that there was an odor of marijuana emanating from the vehicle. Additionally, both PO Tejada and PO Joyce testified that they found marijuana in the course of searching § 87(2)(b) vehicle. § 87(2)(g)

generally, none of the officers’ BWC videos capture a substance that is clearly marijuana. § 87(2)(g)

It is therefore recommended that **allegations G – L be closed as unsubstantiated.**

Allegation M: Force – Police Officer Jayther Liriano used physical force against § 87(2)(b).

Allegation N: Force – Police Officer Michael Visintin used physical force against § 87(2)(b).

Allegation O: Abuse of Authority – Police Officer James Weck interfered with § 87(2)(b) use of a recording device.

Allegation P: Abuse of Authority – Police Officer Michael Visintin interfered with § 87(2)(b) use of a recording device.

Allegation Q: Abuse of Authority – Police Officer James Weck failed to provide § 87(2)(b) with a business card.

Allegation R: Abuse of Authority – Police Officer Jose Tejada failed to provide § 87(2)(b) with a business card.

Allegation S: Abuse of Authority – Police Officer Nestor Amarantepolanco failed to provide § 87(2)(b) with a business card.

Allegation T: Abuse of Authority – Police Officer Michael Visintin failed to provide § 87(2)(b) with a business card.

Allegation U: Abuse of Authority – Police Officer Jayther Liriano failed to provide § 87(2)(b) with a business card.

Allegation V: Abuse of Authority – Police Officer James Weck failed to provide § 87(2)(b) with a business card.

Allegation W: Abuse of Authority – Police Officer Jose Tejada failed to provide § 87(2)(b) with a business card.

Allegation X: Abuse of Authority – Police Officer Nestor Amarantepolanco failed to provide § 87(2)(b) with a business card.

Allegation Y: Abuse of Authority – Police Officer Michael Visintin failed to provide § 87(2)(b) with a business card.

Allegation Z: Abuse of Authority – Police Officer Jayther Liriano failed to provide § 87(2)(b) with a business card.

At 03:46 in PO Liriano's BWC footage, PO Liriano tells § 87(2)(b) to get back inside of § 87(2)(b) vehicle. PO Liriano explained during his CCRB interview [BR 16] that he needed § 87(2)(b) to reenter the vehicle so that he could search the vehicle's trunk. § 87(2)(b) says "I don't have to get in the car." At 04:06, § 87(2)(b) begins walking around the side of § 87(2)(b) vehicle. PO Joyce's BWC video [BR 17], at 04:06, shows § 87(2)(b) slowing, and then turning partially to face PO Liriano, while in very close proximity to the officer. PO Liriano pushes § 87(2)(b) forward. § 87(2)(b) stops walking and turns fully toward PO Liriano, and states "now you're pushing me." PO Liriano pushes § 87(2)(b) again. PO Visintin then pushes § 87(2)(b) into the passenger seat of § 87(2)(b) vehicle. This is seen at 04:14 in PO Visintin's BWC video. PO Visintin stated during his CCRB interview [BR 18] that he "guided" § 87(2)(b) into the vehicle in order to isolate § 87(2)(b) and contain any potential aggression while his partners searched the trunk of § 87(2)(b) vehicle. Upon being presented with his BWC video, PO Visintin stated that he pushed § 87(2)(b) because § 87(2)(b) was getting in his partners' faces. He added that he did not believe that § 87(2)(b) was going to get in the car.

At 04:26 in PO Visintin's BWC footage, § 87(2)(b) is seen holding his cellphone, and is heard stating that he is going to start recording. PO Visintin tells § 87(2)(b) that he cannot record because he is being detained. PO Joyce's BWC video, at 04:25, shows that PO Visintin simultaneously reached his hand inside of the passenger door. At 04:23 and at 04:28 in PO Weck's BWC footage [BR 9], PO Visintin appears to be holding onto § 87(2)(b) wrist. At 04:38 in PO Visintin's BWC video, § 87(2)(b) is seen recording PO Weck and PO Visintin. PO Visintin then slaps § 87(2)(b) hand or phone, causing § 87(2)(b) phone to fall from his hand. PO Visintin is heard stating that he slapped § 87(2)(b) phone because § 87(2)(b) kept "getting in his face." During his CCRB interview, PO Visintin denied any recollection of slapping § 87(2)(b) hand or phone, or generally interfering with § 87(2)(b) ability to record. He stated, however, that he would have been justified in slapping § 87(2)(b) phone from his hand, because § 87(2)(b) kept putting his phone, and shining his phone's light, in PO Visintin's face. PO Visintin's BWC video shows, however, that § 87(2)(b) kept his hand and phone within the vehicle while he recorded. Further, it does not appear that § 87(2)(b) is shining his phone's light into PO Visintin's face.

Between 04:40 and 05:03 in PO Weck's BWC footage, PO Weck is seen continuously shining his flashlight into the lens of § 87(2)(b) cellphone. During his CCRB interview, PO Weck acknowledged that § 87(2)(b) was trying to record him. He stated that that he did not intentionally interfere with § 87(2)(b) ability to record. Rather, he was simply using his flashlight to illuminate § 87(2)(b) and the passenger compartment. PO Weck's BWC video contradicts this assertion, as it shows PO Weck shining his flashlight specifically into the lens of § 87(2)(b) phone and moving his flashlight in tandem with § 87(2)(b) cellphone. At 04:41, for example, § 87(2)(b) lowers his cellphone, apparently to avoid PO Weck's flashlight beam, and PO Weck adjusts his flashlight so that the beam is shining into the phone's lens. PO Weck continues to shine his flashlight into the lens of § 87(2)(b) cellphone until 05:04. The cellphone video that § 87(2)(b) was recording [BR 2] does not capture PO Weck's name or shield number, because of the interference of PO Weck's flashlight.

It is undisputed that none of the officers offered a Right to Know Act business card to either § 87(2)(b) or § 87(2)(b). None of the officers articulated any exigent circumstances that would have made offering a business card impractical.

Under PG 203-09, officers must offer a business card upon concluding any search of

persons or property, including vehicles, unless a summons is issued or arrest made, or exigent circumstances make it impractical to offer a card. NYPD Patrol Guide § 203-09 [BR 19].

Under NYPD PG 203-29, officers may only limit a civilian's right to record police action for such reasons as the safety of officers or when a violation of law is committed by the individual who is videotaping. Officers may not discourage a civilian from recording an encounter and may not intentionally block or obstruct cameras when there is no legitimate law enforcement reason to do so. NYPD Patrol Guide § 203-29 [BR 20].

Under PG 221-02, officers may use force when it is reasonable to ensure the safety of a member of the service, or otherwise protect life, or when it is reasonable to place a person in custody or prevent escape from custody. NYPD Patrol Guide § 221.01 [BR 21].

§ 87(2)(g)

§ 87(2)(b) BWC video shows that that § 87(2)(b) initially failed to comply with PO Liriano's order to get back inside of the vehicle, and repeatedly stated that he did not have to get back in the car. § 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **allegations M and N** be exonerated.

§ 87(2)(g) it is therefore recommended that **allegations O and P** be substantiated.

No summonses were issued to § 87(2)(b) or § 87(2)(b). As it is undisputed that none of the officers offered an RTKA card to § 87(2)(b) or § 87(2)(b) § 87(2)(g) it is recommended that **allegations Q – Z** be substantiated.

Civilian and Officer CCRB Histories

- This is the first CCRB complaint to which either § 87(2)(b) or § 87(2)(b) have been parties [BR 22 and 23].
- PO Amarantepolanco has been a member of service for four years. This is the first CCRB complaint to which he has been a party. § 87(2)(g)
- PO Tejada has been a member of service for five years, over which time he has been the subject of four prior complaint and nine allegations, three of which were substantiated. § 87(2)(g)
 - Case 201707277 involves two substantiated allegations of frisk, and one substantiated allegation of search. The NYPD disposition and penalty was command discipline – A.
- PO Visintin has been a member of service for nine years, over which time he has been the subject of five cases and fifteen allegations, none of which were substantiated. § 87(2)(g)
- PO Weck has been a member of service for four years, over which time he has been the subject of five cases and six allegations, none of which have been substantiated. § 87(2)(g)
- PO Liriano has been a member of service for three years, over which time he has been the subject of two cases and two allegations, neither of which have been substantiated. § 87(2)(g)

- Cases 202003500 and 202005618 remain under investigation.
- PO Joyce has been a member of service for five years, over which time he has been the subject of one complaint, containing one allegation, which was not substantiated. § 87(2)(b)
- The CCRB is in possession of the employment history summaries for PO Tejada, PO Visintin, PO Weck, PO Amarantepolanco, and PO Liriano [BR 26, 27, 28, 29, and 30].

Mediation, Civil, and Criminal Histories

- § 87(2)(b) and § 87(2)(b) opted not to pursue mediation.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
- On July 26th, 2021, the investigator queried the Comptroller's Office for any notices of claim regarding this incident. The results will be added to the case file upon receipt.

Squad: _____7_____

Investigator: _____ Will Rasenberger _____ Inv. Will Rasenberger _____ 07/26/2021 _____
Signature Print Title & Name Date

Squad Leader: _____ Manager Vanessa Rosen _____ August 3, 2021 _____
Signature Print Title & Name Date

Reviewer: _____ _____ _____
Signature Print Title & Name Date